U.S. EQUAL EMPLOYMENT OPPORTUNITY COMMISSION
Office of Federal Operations
P.O. Box 77960
Washington, DC 20013

Kevin D. Turnage a/k/a
Tom S.,[1]
Complainant,

v.

Robert F. Kennedy, Jr.,
Secretary,
Department of Health and Human Services
(Indian Health Service),
Agency.

Appeal No. 2024004239

Agency No. HHS-IHS-0296-2023

DECISION

Complainant filed an appeal with the Equal Employment Opportunity Commission (EEOC or Commission), pursuant to 29 C.F.R. § 1614.403(a), from the Agency's July 11, 2024, final decision concerning his equal employment opportunity (EEO) complaint of employment discrimination in violation of Title VII of the Civil Rights Act of 1964 (Title VII), as amended, 42 U.S.C. § 2000e et seq. and the Age Discrimination in Employment Act of 1967 (ADEA), as amended, 29 U.S.C. § 621 et seq. For the following reasons, the Commission AFFIRMS the Agency's final decision.

At the time of events giving rise to this complaint, Complainant was employed by the Agency as a Supervisory Clinic Nurse at the Phoenix Indian Medical Center located in Phoenix, Arizona. On April 13, 2023, Complainant filed an EEO complaint alleging he was subjected to discrimination and harassment by the Agency on the bases of race (Caucasian), sex (male), religion (Christian), color (white), age, and in reprisal for prior protected EEO activity when:

[1] This case has been randomly assigned a pseudonym which will replace Complainant's name when the decision is published to non-parties and the Commission's website.

1. Beginning in January 2023, management failed to timely process his Family Medical Leave Act (FMLA) paperwork;

2. On March 2, 2023, management gave Complainant a low Performance Management Appraisal Plan (PMAP) score;

3. On March 21, 2013, management placed Complainant on administrative leave, escorted Complainant out of the facility utilizing security, and removed Complainant's system access;

4. In April 2023, management placed Complainant on a temporary 120-day detail in another unit;

5. Beginning April 2023, management denied Complainant access to the men's restroom;

6. Beginning April 2023, management did not provide Complainant office keys; and

7. Beginning April 2023, management reassigned Complainant to an undesirable location.

Following an investigation, the Agency issued a final decision pursuant to 29 C.F.R. § 1614.110(b). The decision concluded that Complainant did not prove that the Agency subjected him to discrimination as alleged. Complainant then filed the instant appeal.

At the outset, we note Complainant does not challenge the definition of the accepted claims. Further, we find the record in the present case was fully developed.

Upon review, we find the Agency articulated legitimate, nondiscriminatory reasons for its actions. Regarding claim 1, the Agency noted the processing of Complainant's FMLA request was delayed because initially he did not submit all the necessary documents. Regarding claim 2, the Agency noted that it failed to include a score for one of the critical elements on Complainant's PMAP, which it stated was an unintentional error by the rating official. After notification, Complainant was scored on the element, and Complainant's overall score increased from 3.3 to 3.5. The Agency noted Complainant's overall score reflected Complainant's performance, noting he exhibited some difficulty turning work in on time.

Regarding claim 3, the Agency placed Complainant on administrative leave and escorted him out of the building after a management official reported that on March 21, 2023, Complainant made a threat of violence against a direct report. Regarding claim 4, the Agency stated it placed Complainant on a temporary detail pending the outcome of an administrative investigation into the incident that occurred between Complainant and his direct report on March 21, 2023, and pending resolution of the various harassment allegations filed between Complainant and his direct report and Complainant and a manager. Upon review, we find Complainant failed to show that the Agency's actions were motivated by any of his protected bases. To the extent that Complainant is alleging sexual harassment when Complainant claimed that Manager A gave him a hug, which he "rebuffed," we find the sole incident cited does not rise to the level of unlawful sexual harassment.

Finally, we address Complainant's claim of harassment (non-sexual). Given our finding that incidents 1-4 were not motivated by discriminatory or retaliatory animus, we will not consider them as part of Complainant's harassment claim. A finding of a hostile work environment is precluded by our determination that Complainant failed to establish that any of the actions taken by the Agency were motivated by discriminatory animus. See Oakley v. U.S. Postal Service, EEOC Appeal No. 01982923 (Sept. 21, 2000).

As for the remaining claims (claims 5-7), we find that Complainant failed to show the Agency subjected him to harassment. Complainant stated that upon relocation to a new building, he did not have keys to the office or the men's restroom. Complainant stated after he informed management of the issue, he then received the appropriate keys in a couple of days. The Agency noted Complainant previously worked in that building for several years and knew a key to the men's restroom was located in the breakroom for all staff to use. The Agency also noted that during his detail, Complainant expressed a desire to remain in the detailed position at the new building permanently. We find Complainant failed to show that the Agency's actions were motivated by any of his protected bases.

Accordingly, the Agency's final decision finding no discrimination is AFFIRMED.

STATEMENT OF RIGHTS - ON APPEAL
RECONSIDERATION (M0425)

The Commission may, in its discretion, reconsider this appellate decision if Complainant or the Agency submits a written request that contains arguments or evidence that tend to establish that:

1. The appellate decision involved a clearly erroneous interpretation of material fact or law; or
2. The appellate decision will have a substantial impact on the policies, practices, or operations of the agency.

Requests for reconsideration must be filed with EEOC's Office of Federal Operations (OFO) **within thirty (30) calendar days** of receipt of this decision. If the party requesting reconsideration elects to file a statement or brief in support of the request, **that statement or brief must be filed together with the request for reconsideration**. A party shall have **twenty (20) calendar days** from receipt of another party's request for reconsideration within which to submit a brief or statement in opposition. See 29 C.F.R. § 1614.405; Equal Employment Opportunity Management Directive for 29 C.F.R. Part 1614 (EEO MD-110), at Chap. 9 § VII.B (Aug. 5, 2015).

Complainant should submit their request for reconsideration, and any statement or brief in support of their request, via the EEOC Public Portal, which can be found at https://publicportal.eeoc.gov/Portal/Login.aspx. Alternatively, Complainant can submit their request and arguments to the Director, Office of Federal Operations, Equal Employment Opportunity Commission, via regular mail addressed to P.O. Box 77960, Washington, DC 20013, or by certified mail addressed to 131 M Street, NE, Washington, DC 20507. In the absence of a legible postmark, a complainant's request to reconsider shall be deemed timely filed if OFO receives it by mail within five days of the expiration of the applicable filing period. See 29 C.F.R. § 1614.604.

An agency's request for reconsideration must be submitted in digital format via the EEOC's Federal Sector EEO Portal (FedSEP). See 29 C.F.R. § 1614.403(g). Either party's request and/or statement or brief in opposition must also include proof of service on the other party, unless Complainant files their request via the EEOC Public Portal, in which case no proof of service is required.

Failure to file within the 30-day time period will result in dismissal of the party's request for reconsideration as untimely, unless extenuating circumstances prevented the timely filing of the request. **Any supporting documentation must be submitted together with the request for reconsideration.** The Commission will consider requests for reconsideration filed after the deadline only in very limited circumstances. See 29 C.F.R. § 1614.604(f).

COMPLAINANT'S RIGHT TO FILE A CIVIL ACTION (S0124)

You have the right to file a civil action in an appropriate United States District Court **within ninety (90) calendar days** from the date that you receive this decision. If you file a civil action, you must name as the defendant in the complaint the person who is the official Agency head or department head, identifying that person by their full name and official title. Failure to do so may result in the dismissal of your case in court. "Agency" or "department" means the national organization, and not the local office, facility or department in which you work. If you file a request to reconsider and also file a civil action, **filing a civil action will terminate the administrative processing of your complaint.**

RIGHT TO REQUEST COUNSEL (Z0815)

If you want to file a civil action but cannot pay the fees, costs, or security to do so, you may request permission from the court to proceed with the civil action without paying these fees or costs. Similarly, if you cannot afford an attorney to represent you in the civil action, you may request the court to appoint an attorney for you. **You must submit the requests for waiver of court costs or appointment of an attorney directly to the court, not the Commission.** The court has the sole discretion to grant or deny these types of requests. Such requests do not alter the time limits for filing a civil action (please read the paragraph titled Complainant's Right to File a Civil Action for the specific time limits).
FOR THE COMMISSION:

Gul Chaudhry

Gul Chaudhry, Acting Director
Office of Federal Operations

September 2, 2025
Date